

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

TAZSHEENA REID,

Plaintiff,

-against-

CITY OF NEW YORK, NICHOLAS ISAAC,
Individually, MATTHEW HUTT, Individually, and
JOHN and JANE DOE 1-5, Individually (the names
John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendant.

SUMMONS

Index No.:

Plaintiff designates:
Bronx County as the place of trialBasis of venue is:
The place of occurrence

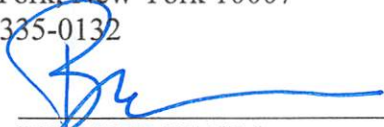
To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007NICHOLAS ISAAC
c/o NYPD 47th Precinct
4111 Laconia Avenue
Bronx, New York 10446MATTHEW HUTT
c/o NYPD 47th Precinct
4111 Laconia Avenue
Bronx, New York 10446Dated: New York, New York
September 10, 2020BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff, TAZSHEENA REID
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By:


BRETT H. KLEIN

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

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Defendant.

VERIFIED COMPLAINT

Index No.:

Jury Trial Demanded

Plaintiff, TAZSHEENA REID, by her attorneys, BRETT H. KLEIN, ESQ., PLLC, as and
for her Verified Complaint, alleges as follows:

1. Plaintiff TAZSHEENA REID is a thirty-five-year-old African American female
residing in the State of New York, County of Bronx.

2. The cause of action alleged herein arose in the State of New York, County of the
Bronx.

3. Defendant CITY OF NEW YORK was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

4. Defendant CITY OF NEW YORK maintains the New York City Police Department
(hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department,
authorized to perform all functions of a police department as per the applicable sections of the
aforementioned municipal corporation, CITY OF NEW YORK.

5. That at all times hereinafter mentioned, defendants NICHOLAS ISAAC,
MATTHEW HUTT, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of

said department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

8. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

9. The cause of action alleged herein arose in the State of New York, County of Bronx.

10. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to, and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

11. Defendant CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

12. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

13. Plaintiff has complied with all conditions precedent to maintaining the instant action.

14. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

FACTS

15. On June 12, 2019, between approximately 6:00 p.m. and 7:00 p.m., in the vicinity of 4035 White Plains Road, Bronx, New York, plaintiff was arrested by defendants NICHOLAS ISAAC and MATTHEW HUTT for an incident that in itself is not the subject of plaintiff's claims herein.

16. Prior to her arrest, on June 5, 2019, plaintiff underwent breast reduction surgery.

17. At the time of her arrest on June 12, 2019, the surgical incisions made to her breasts were still healing, were held closed by stitches that had not yet dissolved, and plaintiff was still experiencing pain, tenderness, and swelling from the surgical procedure.

18. During her arrest on June 12, 2019, plaintiff informed defendants ISAAC and HUTT that she had recently undergone breast surgery and that as a result could not place her hands behind her back. Ms. Reid further asked to be handcuffed in the front.

19. Plaintiff's claim that she had recently undergone surgery were readily verifiable and obvious based on the incisions and stitching to plaintiff's breasts.

20. Nonetheless, and despite that plaintiff was fully cooperative and did not present a threat to the officers or others, defendants ISAAC and HUTT unreasonably handcuffed plaintiff behind her back in deliberate disregard of plaintiff's her health and safety.

21. Plaintiff was thereafter placed in a NYPD vehicle and transported to the 47th Precinct.

22. During the ride to the precinct, plaintiff informed defendants ISAAC and HUTT that she felt pulling of the stitches in her right breast, as well as moisture, indicating the wound was bleeding, and again requested that the handcuffs be adjusted.

23. Plaintiff's complaints and requests that her handcuffs be adjusted went unaddressed.

24. Upon arriving at the 47th Precinct, plaintiff's handcuffs were removed for a few hours while she was detained in a cell.

25. While at the 47th Precinct, plaintiff was, however, rear handcuffed again, and then transported to Bronx Central Booking ("BCB") by defendants JOHN DOE 1 and JANE DOE 2.

26. Plaintiff's requests to be rear handcuffed by JOHN DOE 1 and JANE DOE 2 were also ignored.

27. Moreover, during the transport to BCB, plaintiff was seated beside two other arrestees and due to insufficient space, had to sit in a slanted position, which further exacerbated the pulling of the stitches and the pain she felt in her breasts.

28. During her transport, plaintiff again repeatedly complained of pain and asked defendants JOHN DOE 1 and JANE DOE 2 to adjust her handcuffs. JOHN DOE 1 and JANE DOE 2, however, also refused to accommodate plaintiff's request and responded only by telling plaintiff that she should speak to EMS when they arrive at BCB.

29. Once at BCB, plaintiff spoke to EMS personnel, notified them of her complaints, and requested medical attention.

30. Plaintiff was told by EMS personnel her complaints would be documented, however, despite this representation, no medical treatment was provided to plaintiff, and despite her repeated requests to be front handcuffed, plaintiff was again, unreasonably and in deliberate disregard of her health, and safety, handcuffed behind her back multiple times while at central booking, causing her additional severe pain and discomfort each time.

31. By disregarding plaintiff's repeated requests to be front handcuffed due to her recent breast surgery, and repeatedly placing plaintiff in rear handcuffs in deliberate disregard of plaintiff's health and safety, defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10 assaulted, battered, and subjected plaintiff to excessive force, and intentionally and/or negligently, caused plaintiff pain, injuries, and emotional distress.

32. Defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10 either directly participated in the above illegal acts, failed to intervene in them despite a meaningful opportunity to do so, or supervised and approved of, oversaw, and otherwise participated in the aforementioned misconduct.

33. Upon being released from NYPD custody, plaintiff sought medical treatment at Montefiore Mount Vernon Hospital, and later followed up with the surgeon who performed the procedure on her breasts.

34. Plaintiff was informed by her breast surgeon that the injury to her right breast may necessitate another surgery in the future, when the wound is fully healed, to correct the stretching of the surgical incision and resulting disfigurement caused by the above described needless and otherwise unlawful acts of defendants.

35. Defendant CITY OF NEW YORK owed a duty to plaintiff to ensure her safety in its custody and to provide plaintiff with necessary medical care.

36. Defendant CITY OF NEW YORK breached its duty to plaintiff, resulting in plaintiff sustaining pain and physical impairment while in its custody.

37. All of the above occurred as a direct result of the unconstitutional policies, customs, or practices of the City of New York, including, without limitation, the utilization of rear handcuffs in conscious disregard of an arrestees specific health and safety needs.

38. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding the safe handcuffing of individuals with special medical or physical needs.

39. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in injuries to arrestees and a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

40. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and supervise them.

41. All of the aforementioned acts of defendants, their agents, servants, and employees were carried out under the color of state law.

42. As a result of the foregoing, plaintiff TAZSHEENA REID sustained, *inter alia*, physical pain, ripping of the surgical stitches in her right breast, skin disfigurement, prolonged healing of her surgical wound at the sight of the ripped stitches, and emotional distress.

STATE LAW CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION (Assault)

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "42" with the same force and effect as if fully set forth herein.

44. As a result of the foregoing, plaintiff TAZSHEENA REID was placed in apprehension of imminent harmful and offensive bodily contact.

45. As a result of the defendants' conduct, plaintiff has suffered physical pain, injuries, and mental anguish.

46. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents, including defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10, who were acting in the scope of their employment when they engaged in the wrongful conduct described herein.

47. Defendant CITY OF NEW YORK, as employer of defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Battery)

49. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "48" with the same force and effect as if fully set forth herein.

50. Defendants ISAAC, HUTT, and JOHN and JANE DOE through 10 made offensive contact with plaintiff TAZSHEENA REID without privilege or consent.

51. As a result of defendants' conduct, plaintiff has suffered physical pain, injuries, and mental anguish.

52. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees

and agents, including defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10, who were acting in the scope of their employment when they engaged in the wrongful conduct described herein.

53. Defendant CITY OF NEW YORK, as employer of defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Negligence)

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "54" with the same force and effect as if fully set forth herein.

56. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of defendant CITY OF NEW YORK and defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

57. Defendant City, as employer of the defendant officers who engaged in the wrongful conduct described herein is responsible for their negligent acts under the doctrine of *respondeat superior*.

58. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable

attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Negligent Screening, Hiring, and Retention Against Defendant City of New York)

59. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered "1" through "58" with the same force and effect as if fully set forth herein.

60. Defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of defendants ISAAC, HUTT, and JOHN and JANE DOE 1 through 10, who assaulted and battered plaintiff, and who failed to ensure plaintiff's safety while in NYPD custody.

61. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

62. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION

(Negligent Training and Supervision Against Defendant City of New York)

63. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. Defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of defendants, who assaulted and battered plaintiff, and who failed to ensure plaintiff's safety while in NYPD custody.

65. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive

damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Federal Claims

**AS AND FOR A SIXTH CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)**

66. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "65" with the same force and effect as if fully set forth herein.

67. The level of force employed by defendants was excessive, objectively unreasonable, and otherwise in violation of plaintiff TAZSHEENA REID'S constitutional rights.

68. As a result of the aforementioned conduct of defendants, plaintiff TAZSHEENA REID was subjected to excessive force and sustained physical injuries and emotional distress.

69. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

**AS AND FOR A SEVENTH CAUSE OF ACTION
(Deliberate Indifference to Medical Needs under 42 U.S.C. § 1983)**

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that was deliberately indifferent to plaintiff's medical needs by disregarding an excessive risk to the plaintiff's health or safety, which is forbidden by the Constitution of the United States.

72. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.

74. Defendants had an affirmative duty to intervene on behalf of plaintiff TAZSHEENA REID, whose constitutional rights were being violated in their presence by other officers.

75. The defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, plaintiff TAZSHEENA REID was subjected to excessive force and her medical and safety needs were deliberately disregarded.

77. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "77" with the same force and effect as if fully set forth herein.

79. The supervisory defendants personally caused plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise

and train their subordinate employees.

80. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983 against Defendant City of New York)

81. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "80" with the same force and effect as if fully set forth herein.

82. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

83. The aforementioned customs, policies, usages, practices, procedures, and rules of the New York City Police Department included, but were not limited to the utilization of rear handcuffs in disregard of an arrestees health and safety needs. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees with regard to handcuffing individuals with special needs that was the moving force behind the violation of plaintiff TAZSHEENA REID'S rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

84. The foregoing customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate

indifference to the safety, well-being, and constitutional rights of plaintiff TAZSHEENA REID.

85. The foregoing customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff TAZSHEENA REID as alleged herein.

86. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff TAZSHEENA REID was unreasonably subjected to excessive force.

87. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

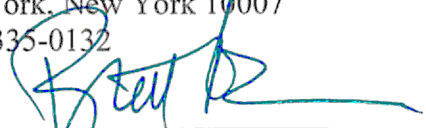
88. As a result of the foregoing, plaintiff TAZSHEENA REID is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, plaintiff TAZSHEENA REID demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper

Dated: New York, New York
September 10, 2020

BRETT H. KLEIN, ESQ., PLLC
Attorneys for Plaintiff, TAZSHEENA REID
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: 

BRETT H. KLEIN

ATTORNEY VERIFICATION

STATE OF NEW YORK)

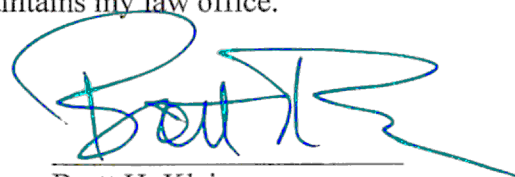
COUNTY OF NASSAU)

BRETT H. KLEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of BRETT H. KLEIN, ESQ., PLLC, attorneys for the plaintiff Tazsheena Reid. I have read the annexed SUMMONS and VERIFIED COMPLAINT, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not the plaintiff is that plaintiff does not reside in the county wherein the undersigned maintains my law office.

Dated: New York, New York
September 10, 2020


Brett H. Klein

Sworn to before me
this 10 day of September 2020


Notary Public

HENRY ELIOT RAKOWSKI
Notary Public, State of New York
No. 02RA4963827
Qualified in Nassau County
Commission Expires March 19, 2022 

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

-----X

TAZSHEENA REID,

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SUMMONS AND VERIFIED COMPLAINT

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff
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